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File No.: EXP202316660

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Data Protection Agency and based on the following

FACTS

FIRST: On October 24, 2023, Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Data Protection Agency, with entry registration number REGAGE23e00071889687, against SEUR S.A., which has been subject to a merger by absorption by Geopost España, S.L., with NIF B85645349 (hereinafter, GEOPOST or the complained party). The reasons for the complaint are as follows:

The complainant states that he made a purchase through the AMAZON website, establishing his home address as the pickup address.

He points out that the complained entity was responsible for the delivery management of said purchase; however, they informed him that delivery to his home was not possible, without any record of delivery attempts, and that they deposited the aforementioned order in a public establishment, all without his consent.

Consequently, he believes that they have improperly exposed the data contained on the shipping label to third parties.

Along with the complaint, a copy of the order information and delivery information is provided, as well as the response provided by GEOPOST to the complainant after sending an email of complaint.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to GEOPOST for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on November 22, 2021, as stated in the certification in the file.

On December 7, 2023, this Agency received a written response indicating that "(...) it has verified the following:

- That a SEUR delivery person went to the complainant's home to make a delivery.
- That the complainant was absent at the time of delivery.
- That, consequently, the delivery person left the complainant's package at an establishment authorized by SEUR.

... the delivery was made at one of the authorized Pickups by SEUR as a delivery point, due to the complainant being absent from the home, thus complying with the transport conditions of SEUR published at the following link on the WEB <https://www.seur.com/es/condiciones-de-transporte/>. (...)

THIRD: On January 3, 2024, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Data Protection Agency is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary Issues

In Article 4 of the GDPR, points 7 and 8, it specifies what is to be understood by the data controller and the data processor. Thus, we have:

“7) ‘data controller’ or ‘controller’ means the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be laid down by the law of the Union or of the Member States;

8) ‘data processor’ or ‘processor’ means the natural or legal person, public authority, service, or other body that processes personal data on behalf of the controller;”

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In short, the data controller is the natural or legal person or public authority that decides on the processing of personal data, determining the purposes and means of such processing.

By virtue of the principle of proactive responsibility, the data controller must apply technical and organizational measures to comply with and be able to demonstrate compliance, taking into account the risk involved in the processing of personal data.

On the other hand, the data processor is the natural or legal person, public authority, service, or other body that provides a service to the controller that involves the processing of personal data on behalf of the controller.

In this sense, the controller is the one who decides the "why" and "how" regarding personal data, while the processor is the one who carries out the processing on behalf of the controller.

The role of the data processor in the GDPR is defined in Article 28, which establishes the requirements that must be met regarding data protection:

1. When processing is to be carried out on behalf of a data controller, the controller shall only choose a processor that offers sufficient guarantees to implement appropriate technical and organizational measures, so that the processing is in compliance with the requirements of this Regulation and ensures the protection of the rights of the data subject.

2. The data processor shall not engage another processor without the prior written authorization, specific or general, of the controller. In this latter case, the processor shall inform the controller of any intended changes concerning the incorporation or replacement of other processors, thus giving the controller the opportunity to object to such changes.

3. The processing by the processor shall be governed by a contract or other legal act under Union or Member State law, which binds the processor to the controller and establishes the subject matter, duration, nature, and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller. Such contract or legal act shall stipulate, in particular, that the processor:

a) shall process the personal data only on documented instructions from the controller, including with regard to the transfers of personal data to a third country or an international organization, unless required to do so by Union or Member State law applicable to the processor; in such a case, the processor shall inform the controller of that legal requirement before processing, unless that law prohibits such information on important grounds of public interest;

b) shall ensure that persons authorized to process personal data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality;

c) shall take all necessary measures in accordance with Article 32; (...)

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These specific obligations may be supervised by data protection authorities, without prejudice to the oversight that may be carried out regarding compliance with the GDPR or the LOPDGDD by the controller or the data processor.

In this case, GEOPOST was the company responsible for delivering the package to the claimant's address; however, in the absence of the claimant, it was delivered to an establishment authorized by GEOPOST, specifically, at (...).

III

Article 5.1.f) of the GDPR

Article 5.1.f) "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by means of appropriate technical or organizational measures ('integrity and confidentiality')."

The claimant states that they made a purchase through the AMAZON website, providing their home address as the delivery and collection address.

GEOPOST informed the claimant that it was not possible to deliver the purchase to their home, depositing the said order in a public establishment, all without their consent.

Consequently, they believe that the data contained on the shipping label corresponding to the claimant has been improperly exposed to third parties.

In the response letter dated December 7, 2023, submitted to this Agency by GEOPOST, it is stated that "...SEUR has a wide network of delivery points, called Pickup, for goods transported within its organization, with the aim of facilitating access to them by its customers. Thus, SEUR has entered into a service provision contract with the various Pickup locations, whose duty is to receive, safeguard, store, and deliver the goods made available to them following the procedure indicated by SEUR. Therefore, we confirm that, in this case, the delivery of the goods was made at one of our authorized stores in the SEUR delivery point network, specifically at (...)... Thus, as a result of the existing relationship between the parties, the Pickup locations must process personal data on behalf of or in the name of SEUR as data processors, in order to fulfill contractual obligations, and such access does not at any time constitute a transfer or communication of data, but rather a processing assignment, as stated.

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provided in Article 33.1 of the LOPDGDD and, having SEUR signed with Pickup the corresponding data processing agreement where the obligations required by data protection regulations are set forth...".

In the contract signed between GEOPOST and the Pickup Point, it states that

"EIGHTH. - Confidentiality and data protection.

The Pickup Point agrees not to make copies or deliver to third parties the material made available to it, manuals, software applications, or any other documentation related to operations, services, sales techniques, procedures, systems, design, and its agreements with SEUR. These elements are the property of SEUR, and the Pickup Point commits to not disclose any of this information directly or indirectly, being responsible for its custody.

As a consequence of the services described in Annex I of this contract, the Pickup Point may have access to personal data of the franchise customers or files of SEUR, and therefore the Pickup Point will process the personal data in accordance with its instructions, confidentially and solely for the purpose of providing the services described in this contract, without being able, under any

circumstances, to apply or use them for any other purpose, nor transfer or communicate them, not even for their safekeeping, to other persons.”.

Consequently, the processing of the personal data of the claimant by the personnel providing services at the Pickup Point complies with the provisions of data protection regulations, without there being, under any circumstances, an undue exposure of the personal data of the claimant.

IV

Article 32 of the GDPR

Article 32 “Security of processing” of the GDPR establishes:

“1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;
b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;

d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law.”

The facts presented by the claimant, which are specified in the delivery of a package through an establishment of the respondent's network, in the circumstances outlined in the previous legal grounds, do not evidence any lack of appropriate technical and organizational measures to ensure a level of security appropriate to the risk.

V

Filing of the complaint when the controller or processor has taken measures to comply with applicable regulations

The file indicates that GEOPOST has adopted additional measures subsequent to the filing of the complaint; therefore, the application of Article 65.6 LOPDGDD is appropriate, which expressly states that:

“6. After the admission for processing, if the controller or processor demonstrates having adopted measures to comply with applicable regulations, the Spanish Agency for Data Protection may resolve to file the complaint, when in the specific case there are circumstances that advise the adoption of other more moderate or alternative solutions to corrective action, provided that no prior investigative actions or any of the procedures regulated in this organic law have been initiated.”

Thus, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to GEOPOST ESPAÑA, S.L. and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions established in Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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